

FEDERAL MARITIME COMMISSION

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HANGZHOU QIANWANG DRESS CO., LTD.

Docket No. 17-02

Complainant,

**RDD's RESPONSE TO
COMPLAINANT'S PROPOSED
FINDINGS OF FACT**

-against-

RDD FREIGHT INTERNATIONAL INC.

Respondent.

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Respondent RDD FREIGHT INTERNATIONAL INC. ("RDD"), by and through its undersigned counsel, hereby responds to the Proposed Findings of Fact filed by Complainant HANGZHOU QIANWANG DRESS CO., LTD. ("HQP"), as follows:

1. RDD admits upon information and belief.
2. RDD admits it is a licensed cargo forwarder and a Non-Vessel Operating Common Carrier (NVOCC).
3. RDD admits that it carries the surety bonds which became the Complainant's target.
4. RDD admits that it carried the goods in question under Bills of Ladings issued but denies the rest of the Complainant's allegations.
5. RDD admits that it contracted with the Complainant for transportation of the goods in question.
6. RDD admits that the Complainant agreed but later refused to pay freight charge in breach of the said contract.
7. RDD admits that the three containers of goods were the subject matter of this case.
8. RDD admits that it issued the Bills of Ladings as mentioned therein.

9. RDD admits that SWAK Kids Inc. was the designated consignee.
10. RDD denies that it promptly released the goods to the said consignee.
11. RDD denies that it neither waited for nor obtained the Complainant's consent and all the rest of the allegations.
12. RDD denies the Complainant such allegations therein.
13. RDD denies the Complainant such allegations therein upon information and belief.
14. RDD admits the Complainant such allegations therein upon information and belief.
15. RDD denies the Complainant such allegations therein.
16. RDD admits that, on or about May 17, 2018, while this case is still pending, the Complainant settled its claims against RDD and Zhejiang Handsome Int'l – RDD's counterpart in China under the Chinese Court Procedures, whereby RDD would pay the sum of \$61,704.00 representing 50% of the value of the claims; RDD paid and Complainant received in full settlement of its claims.

RESPECTFULLY SUBMITTED on this day July 28, 2018.



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